

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 06/17/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Rayhan – Other Probate (2024-01401950)	Motion for Protective Order Respondents Memorial Health Services and Orange Coast Memorial Medical Center, Inc.’s Motion for Protective Order (ROA 244) is GRANTED. Respondents seek a protective order staying discovery pending a ruling on their upcoming demurrer to the second amended petition. Respondents argue a stay would satisfy judicial economy because the demurrer will determine whether this proceeding is duplicative of an earlier-filed civil proceeding, making discovery in this action moot. Petitioners argue the stay should be denied because Respondents’ motion fails to make a particularized showing that any individual discovery request is burdensome or inappropriate. No such showing is required. Trial courts have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (Frieberg v. Mission Viejo (1995) 33 Cal.App.4th 1484, 1489; see OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 [trial court’s “inherent power” to stay proceedings is “ incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”].) The court exercises its inherent power and GRANTS the motion for protective order. All discovery in this probate proceeding is stayed pending a ruling on the demurrer, which is scheduled to be heard on June 17, 2026. Petitioners’ motions to compel set for hearing on July 8, 2026 (ROAs 220-223) and July 22, 2026 (ROAs 230-233) will remain on calendar as scheduled, subject to further court order. Moving party is directed to give notice.
